

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 12
SEPTEMBER 16, 2026
8:30 a.m.

2. STEPHAN HAASE V. TAYLOR BROOKE MYATT

23FL0933

This matter is before the court for hearing of the Request for Order (RFO) filed by the Petitioner on June 30, 2026, seeking need-based attorney fees (\$85,000) and expert witness fees (\$50,000). Petitioner concurrently filed with his RFO a current Income and Expense Declaration (I&E). Proof of service, also filed June 30, 2026, shows the RFO and I&E were both electronically served upon Respondent that same day.

On July 08, 2026, the parties stipulated to continue the instant hearing from August 12, 2026, to September 16, 2026.

On September 02, 2026, Respondent filed a Responsive Declaration, wherein Respondent requests the court to grant her October 01, 2025, request for Family Code section 271 (“Section 271”)¹ sanctions against the Petitioner in the amount of \$25,000.² Respondent concurrently filed a supporting memorandum of points and authorities and current I&E. Proof of service, also filed September 02, 2026, shows that each of Respondent’s aforementioned filings were electronically served upon Petitioner that same day.

On September 09, 2026, Petitioner filed a Responsive Declaration to Respondent’s request for Section 271 sanctions, a copy of which was electronically served upon Petitioner that same day per the proof of service attached to said declaration. Petitioner also filed a reply brief in support of his RFO; to date, however, there is no proof of service for the reply brief in the court’s file. Petitioner’s reply brief requests his own Section 271 sanctions against Respondent. (Reply at 6:12–13.) However, a request for Section 271 sanctions may not be raised for the first time in a reply brief. Additionally, without proof of service for the reply brief, the court does not consider the reply brief at all.

On September 11, 2026, Respondent filed an objection and request to strike Petitioner’s Reply Declaration on the ground that Respondent filed an oversized declaration without leave of court. On September 14, 2026, Petitioner filed an opposition to Respondent’s request to strike. As previously mentioned, there is no proof of service for Petitioner’s Reply Declaration. For that reason, the court does not consider it. Therefore, the court need not consider Respondent’s objection and request to strike, or Petitioner’s related opposition.

¹ Under Section 271, subdivision (a), “the court may base an award of attorney’s fees and costs on the extent to which any conduct of each party or attorney furthers or frustrates the policy of the law to promote settlement of litigation and, where possible, to reduce the cost of litigation by encouraging cooperation between the parties and attorneys.” (Fam. Code, § 271, subd. (a).)

² On February 10, 2026, Respondent filed a stipulation wherein the parties agreed that, if Petitioner “seeks attorney’s fees before the trial date,” then Respondent’s October 01, 2025, “request for Family Code Section 271 sanctions will be heard at that same time.” (Resp. Decl., filed Sep. 02, 2026, Ex. A at ¶ 14.)

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Turning to the merits, it appears to the court that Petitioner may have inflated certain monthly expenses in his I&E. For example, he estimates his monthly maintenance and repair expenses for his home amount to \$2,000. He also estimates \$1,500 on groceries and household supplies, yet also estimates \$800 for eating out. Under education, he estimates a proposed need of \$1,200. He also estimates \$2,000 in boat expenses (not including the monthly payment on the boat loan).

Based on Petitioner's access to funds (i.e., approximately \$800,000 in savings), the court finds that an award of attorney fees and costs (including the requested expert witness fees) is not appropriate at this time. (Fam. Code, § 2030, subd. (a)(2).) The court denies Petitioner's request for attorney fees and expert witness fees, both without prejudice to future re-application.

The court defers its ruling on Respondent's request for sanctions to the time of trial without prejudice to Respondent re-raising the request earlier if warranted by subsequent actions by the Petitioner.

TENTATIVE RULING #2: PETITIONER'S RFO IS DENIED WITHOUT PREJUDICE. RESPONDENT'S REQUEST FOR FAMILY CODE SECTION 271 SANCTIONS IS DEFERRED TO THE TIME OF TRIAL WITHOUT PREJUDICE TO RESPONDENT RE-RAISING THE REQUEST EARLIER IF WARRANTED BY SUBSEQUENT ACTIONS BY THE PETITIONER.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 573-3042 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL.RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL.RULE CT. 3.1308; LOCAL RULE 8.05.07.

ALTHOUGH A REQUEST FOR ORAL ARGUMENT MUST BE SUBMITTED NO LATER THAN 4:00 P.M. ON SEPTEMBER 15, 2026, ANY SUCH ORAL ARGUMENT WILL BE HELD AT 8:30 A.M., WEDNESDAY, SEPTEMBER 23, 2026, IN DEPARTMENT 12.